

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #11	CCRB Case #: 201506987	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 08/04/2015 11:55 PM, Wednesday, 08/05/2015	Location of Incident: Hancock Street and Howard Avenue	Precinct: 81	18 Mo. SOL 2/4/2017	EO SOL 2/4/2017	
Date/Time CV Reported Wed, 08/05/2015 1:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/19/2015 11:14 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. LT Barbara Fischer	00000	920284	081 PCT
2. SSA Michael Miller	02951	921596	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ross Garner	21542	949007	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Barbara Fischer	Abuse: Lt. Barbara Fischer stopped § 87(2)(b) [REDACTED]	[REDACTED]
B.LT Barbara Fischer	Force: Lt. Barbara Fischer used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
C.SSA Michael Miller	Force: Sgt. Michael Miller used physical force against § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On August 4, 2015, at approximately 11:55 p.m., Lt. Barbara Fischer, Sgt. Michael Miller and PO Ross Garner, from the 81st Precinct anti-crime team, dispersed a group, including § 87(2)(b) from the intersection of Hancock Street and Howard Avenue in Brooklyn. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) stopped by Lt. Fischer (**Allegation A**). Lt. Fischer and § 87(2)(b) engaged in a verbal dispute, which turned into a physical altercation. Lt. Fischer and Sgt. Miller used physical force against § 87(2)(b) (**Allegations B and C**). § 87(2)(b) was arrested for § 87(2)(b). (Board Review 10)

Surveillance footage from Hancock Supermarket and Deli located at 865 Hancock Street was obtained by IAB. The video below captured the incident (**Board Review 1 and 2**). The video does not have audio. Due to the incident captured on video, the investigation was conducted without a victim interview, as § 87(2)(b) was uncooperative with the investigation (**Board Review 19**).



2015-11-19_9-59-02 Full video.mp4

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) has not filed a Notice of Claim regarding this incident (**Board Review 3**).
- § 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one other CCRB complaint § 87(2)(b)
- Lt. Barbara Fischer has been a member of the service for 17 years and there are 2 substantiated CCRB allegations against her.
 - In case number 200914676 and 201501154, allegations of discourtesy (word) were substantiated. In the first case, the CCRB recommended instructions and the NYPD issued command discipline. In the second case, the CCRB recommended command discipline; the case is pending NYPD disposition.
- Sgt. Michael Miller has been a member of the service for 17 years and in four cases there are 8 CCRB allegations substantiated against him.
 - In case number 200606390, three allegations of force (nightstick as club; vehicle; physical force) were substantiated. The CCRB recommended charges; the NYPD did not issue disciplinary action.
 - In case number 201015205 frisk and search allegations were substantiated. The CCRB recommended charges and the NYPD issued instructions.

- In 201409442, stop and frisk allegations were substantiated. The CCRB recommended charges; the case is pending NYPD disposition.
- In case number 201504855, an allegation of discourtesy (word) was substantiated. The CCRB recommended formalized training and is pending NYPD disposition.

Findings and Recommendations

Allegation A: Abuse of Authority- Lt. Barbara Fischer stopped § 87(2)(b)

Allegation B: Force- Lt. Barbara Fischer used physical force against § 87(2)(b)

Allegation C: Force- Sgt. Michael Miller used physical force against § 87(2)(b)

§ 87(2)(b) stated in his phone statement that he was walking to Hancock Supermarket and Deli located at the corner of Hancock Street and Howard Avenue. § 87(2)(b) observed officers standing outside of the bodega and asked if it was okay for him to go inside. The officers initially stated no, but then told him that he could go inside. § 87(2)(b) entered the bodega, got a juice, and exited the bodega. He was approached by Lt. Fischer who immediately asked him for identification. § 87(2)(b) asked why. Lt. Fischer did not reply and asked for identification again. Lt. Fischer then snatched § 87(2)(b)'s juice and looked at it. Lt. Fischer suddenly punched § 87(2)(b) and told him to go inside the bodega. § 87(2)(b) said no. Sgt. Miller stood to the side watching. Lt. Fischer continuously pushed § 87(2)(b) closer to the bodega. § 87(2)(b) cursed Lt. Fischer and asked what was wrong with her. Lt. Fischer then kicked § 87(2)(b) and tried to push him down. Sgt. Miller approached and he and Lt. Fischer pulled § 87(2)(b) to the ground. § 87(2)(b) did not recall what happened thereafter, but he was arrested for § 87(2)(b). § 87(2)(b) was uncooperative with the investigation (**Board Review 6 and 19**). § 87(2)(b) was treated at § 87(2)(b) for a lip laceration in which he received stitches (**Board Review 12**). In § 87(2)(b)'s arrest photo, the left part of his lower lip appears swollen and bloody (**Board Review 11**).

§ 87(2)(b) § 87(2)(b) at Hancock Supermarket and Deli was uncooperative with the CCRB (**Board Review 19**), but provided a statement to IAB. He stated that Lt. Fischer entered the bodega and tried to talk to § 87(2)(b). § 87(2)(b) was intoxicated and yelling aggressively at Lt. Fischer that he did not do anything or have anything on him. Lt. Fischer tried to grab § 87(2)(b) and then kicked him in the leg. § 87(2)(b) left the bodega. § 87(2)(b) did not see what happened outside of the bodega (**Board Review 15, p.23**). § 87(2)(b) § 87(2)(b) at Hancock Supermarket and Deli, also stated that he worked on the night of the incident. § 87(2)(b) stated that he saw Lt. Fischer enter the bodega and tell § 87(2)(b) to stop and exit. § 87(2)(b) saying that he did not have anything and that he was just in the store. Lt. Fischer and § 87(2)(b) exited the bodega. § 87(2)(b) remained in the bodega and did not see what happened outside. § 87(2)(b) saw officers with § 87(2)(b) on the ground but he did not see how they ended up this way (**Board Review 18**).

Video 1537A shows PO Garner entering the unmarked car and driving away. § 87(2)(e), § 87(2)(f) Lt. Fischer exits the bodega first. § 87(2)(b) exits behind her holding a black bag close to his stomach. Lt. Fischer stops in front of § 87(2)(b) and appears to grab his hand, but § 87(2)(b) moves and turns his back towards Lt. Fischer. Lt. Fischer appears to try to touch around § 87(2)(b)'s waist but this is unclear as § 87(2)(b) turns around to face Lt. Fischer. § 87(2)(b) has his hands raised in front of him. Lt. Fischer is not visible as § 87(2)(b) is much taller than she is. § 87(2)(b) places the black bag on the ground. Lt. Fischer leans down and picks up the black bag. § 87(2)(b) appears to be talking close to Lt. Fischer and moving his hands. Lt. Fischer moves towards the threshold of the bodega, which is not captured

in the camera angle. § 87(2)(b) continues to talk and move his hands and shoulders. § 87(2)(b) moves closer to the bodega. Lt. Fischer then shoves § 87(2)(b) in the chest, causing § 87(2)(b) to take two steps back. Lt. Fischer approaches § 87(2)(b). § 87(2)(b) grabs her left arm and does not let go. While § 87(2)(b) holds onto Lt. Fischer, she kicks § 87(2)(b) once between the chest and abdomen, pulls back, and then punches § 87(2)(b) once in the face, but he does not let go. Sgt. Miller approaches Lt. Fischer and § 87(2)(b) and stands in front of § 87(2)(b). § 87(2)(b) and Lt. Fischer pull back and forth, but § 87(2)(b) moves towards Sgt. Miller. Sgt. Miller then rams into § 87(2)(b)'s abdomen, causing § 87(2)(b) to flip over and both § 87(2)(b) and Sgt. Miller fall into the street. Lt. Fischer approaches Sgt. Miller and a struggle ensues. Lt. Fischer suddenly stands up and appears to touch her face. A struggle ensues on the ground between Sgt. Miller, § 87(2)(b) and Lt. Fischer. § 87(2)(b) rolls on the ground and Lt. Fischer and Sgt. Miller appear to be attempting to handcuff § 87(2)(b) **(Board Review 1 and 2).**

Lt. Fischer, Sgt. Miller, and PO Garner stated that they were conducting anti-crime patrol when they observed a group of individuals blocking the entrance of the bodega located at the corner of the incident location. All of the officers stated that this location is known for robberies, drug activity, and shootings. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) The officers approached the group and told them to disperse. The group complied without incident. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Lt. Fischer and Sgt. Miller stated that the suspect, § 87(2)(b) and his brother, § 87(2)(b) are known as the § 87(2)(b) brothers” and have a long criminal history and are known members of the Bloods. § 87(2)(b) has been arrested for drugs and assaults. § 87(2)(b) who was nearby the group of individuals, has been arrested for narcotics and attempted murder and is known to their command as one of the most dangerous gang members in the 81st Precinct **(Board Review 7, 8 and 9).**

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b) Sgt. Miller instructed PO Garner to stop the group that had just walked away, so PO Garner got back in their car and drove down the block. § 87(2)(b) walked towards the bodega and Sgt. Miller motioned to Lt. Fischer to stop § 87(2)(b). Lt. Fischer engaged § 87(2)(b) by the doorway of the bodega. Sgt. Miller noticed that Lt. Fischer and § 87(2)(b) inches apart. Sgt. Miller did not know what caused Lt. Fischer to push § 87(2)(b) and told him to get back, but he did see § 87(2)(b) charge at Lt. Fischer and grabbed her wrists. Lt. Fischer repeatedly told § 87(2)(b) to let go of her wrists and that he was under arrest. § 87(2)(b) did not comply. When Lt. Fischer punched § 87(2)(b) in the face and kicked him in the thigh, and still did not let go of her wrists, Sgt. Miller then approached them and told § 87(2)(b) that he was under arrest. § 87(2)(b) responded, “Do you know who the fuck I am?” Sgt. Miller repeated, “You’re under arrest. Let go. Put your hands behind your back.” § 87(2)(b) did not comply.

Sgt. Miller then tackled § 87(2)(b) to the ground by putting his shoulder into § 87(2)(b)'s hip and pushing him to the ground. Sgt. Miller used this tactic, which was taught to him at the Police

Academy, to avoid having to tussle back and forth. The tactic worked perfectly because § 87(2)(b) fell to the ground. § 87(2)(b) tucked his hands under his body and flailed arms while Sgt. Miller and Lt. Fischer struggled to pull his arms behind his back and handcuff him. Sgt. Miller corroborated that he called for backup because a group of individuals then surrounded them **(Board Review 8)**.



2015-11-19_9-59-02 Sgt. Miller-- Tackle.mp4

Lt. Fischer stated that she heard what the informant told Sgt. Miller, at which point she observed § 87(2)(b) wearing a white shirt and blocking the entrance of the bodega. Lt. Fischer asked § 87(2)(b) “Do you have anything on you that you shouldn’t have?” § 87(2)(b) responded, “Get the fuck away from me. You can’t come near me I bought this drink.” § 87(2)(b) smelled like alcohol and his speech was slurring. § 87(2)(b) was holding a glass beverage in a bag and Lt. Fischer was unsure if the beverage was alcoholic, but this did not matter since Lt. Fischer’s focus was anti-crime, not conditions. Lt. Fischer told § 87(2)(b) to leave the bodega and stop blocking the doorway. § 87(2)(b) responded, “I’ll fucking kill you, get away from me.” Lt. Fischer removed the beverage because she did not want § 87(2)(b) to hold anything he could use to hurt her and told him to leave. § 87(2)(b) raised his hand towards Lt. Fischer’s face and said “I don’t have to.” Lt. Fischer felt threatened by this action so she pushed § 87(2)(b) backwards, pointed towards him, and told him, “Do not put your hands in my face. Get away from this corner.” Lt. Fischer explained that she pushed § 87(2)(b) because she felt threatened and wanted to create distance. § 87(2)(b) grabbed Lt. Fischer’s left wrist and did not let go. Lt. Fischer told § 87(2)(b) “Sir, you need to let go of my wrist.” Lt. Fischer told § 87(2)(b) multiple times to let go of her arm over a span of approximately twenty seconds. § 87(2)(b) responded, “I’m not letting go of your arm.” Lt. Fischer then kicked § 87(2)(b) once in the groin. The kick was not effective as § 87(2)(b) did not let go of Lt. Fischer. Lt. Fischer then punched § 87(2)(b) once on the lip. § 87(2)(b) continued to hold onto Lt. Fischer’s arm. Lt. Fischer chose to kick and punch § 87(2)(b) because she thought these tactics were more appropriate than using pepper spray or a baton. Lt. Fischer did not want the situation to escalate. Sgt. Miller approached Lt. Fischer and § 87(2)(b) and he also told § 87(2)(b) to let go, but he did not comply. Sgt. Miller then tackled § 87(2)(b) to the ground and § 87(2)(b) broke free of Lt. Fischer’s wrist. Lt. Fischer and Sgt. Miller got on the ground and attempted to handcuff § 87(2)(b). Lt. Fischer had handcuffed one of § 87(2)(b)’s wrists, and as she attempted to handcuff the other wrist, § 87(2)(b) punched Lt. Fischer in the face. In her interview, she pointed out the moment this occurred on the video, at 1:46. Simultaneously, approximately 15 individuals approached and surrounded them. Sgt. Miller requested back up. Lt. Fischer and Sgt. Miller were eventually able to handcuff § 87(2)(b). Lt. Fischer and other officers canvassed the area for the gun, but yielded negative results **(Board Review 7)**.



2015-11-19_10-02-11 Lt. Fischer--Push.mp4



2015-11-19_9-59-02 Lt. Fisher--Kick and Punch.mp4



2015-11-19_9-39-49 Lt. Fischer stands up.mp4

PO Garner was not present during the altercation between § 87(2)(b) Lt. Fischer and Sgt. Miller because he had left the scene to canvass **(Board Review 9)**.

§ 87(2)(b) was arrested for § 87(2)(b) **(Board Review 10)**. The Aided Report and LOD paper work prepared in regards to Lt. Fischer corroborates that she sustained a laceration to the right side of her face when she was struck by § 87(2)(b) and abrasions to her right hand **(Board Review 13)**.

The Complaint Room Screening Form corroborates that the officers observed a group loitering and instructed them to move along. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Lt. Fischer approached § 87(2)(b) to inquire and frisked § 87(2)(b) because the incident involved a firearm. The document corroborates that force was used by § 87(2)(b) Lt. Fischer and Sgt. Miller **(Board Review 14)**.

IAB determined that § 87(2)(b)'s statement was inconsistent with what is captured in the video. The investigation was "closed to file" as the officers' force was in response to § 87(2)(b)'s resistance **(Board Review 15)**.

According to N.Y.S. Criminal Procedure Law §140.50(1), a police officer may stop a person when he reasonably suspects that such person is committing, has committed, or is about to commit a crime **(Board Review 17)**. According to Patrol Guide Procedure 203-11, only the amount of force necessary to overcome resistance will be used to effect an arrest **(Board Review 16)**.

§ 87(2)(g)

§ 87(2)(g)

Squad: 11

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date